

1602
May 7

[p. 97]

Chief
Justice
attainted of
high treason
for adjourn-
ing a trial

Council of
Wales

Judge by
patent and
not sworn is
a Judge

excepted from the pardon of 39 Elizabeth ; but the consideration of this was reserved that the Judges might deliver their opinions on the next day.¹ And upon this was now much good matter delivered touching extortion and its nature to devour him who uses it, and the difference between extortion and bribery in a Judge or Officer, the grievousness of the offence, as to the punishment of Sir William Thorpe, Chief Justice of England, for adjourning the trial of a felon to the next Assizes following, for which offence he was indicted, arraigned, and executed for high treason ; and this was confirmed by Act of Parliament, so heinous, grievous and odious is the offence of corruption and extortion in a Judge.²

Much good matter was delivered by the Lord Keeper and others touching the authority of the Council of Wales, under the Statutes of 26 Henry VIII., cap. 4 & 6, and 34 Hen. VIII., cap. 26, [by which] the President and Council were created. And therefore if a man be made a Judge by patent and be not sworn, still he is a Judge, and shall be punished for extortion or corruption as a Judge : and that he is not sworn is his own fault, and he shall be punished for this. So is the case of the Council of Wales, who are made by patent, and, within all the Marches of Wales, each has good and equal authority ; but if they are not named to the Council and [? do not] receive instructions from the Queen, they cannot sit nor have an allowance for their ' dyete ' at the Queen's charge. This point also was referred to the Judges to consider.

¹ Their opinion is given *post*, p. 187.

² This worthy was appointed Chief Justice of the King's Bench in 1346. In 1350 he was charged with having taken bribes, and was found guilty by the special Commissioners appointed by King Edward III. to investigate the matter. It was not, however, for adjourning trials, but for staying writs of exigent, that Thorpe received the bribes. He was committed to the Tower, and all his lands and goods were ordered to be seized into the King's hands, until

the royal will and pleasure should be known. The King, by a writ dated Nov. 19, 1350, declared that the proper punishment was that Thorpe should be degraded and hanged, and directed the Commissioners to pass sentence accordingly, which they did. However, his life was spared, and Coke says that he eventually received a full pardon. The record and process were afterwards laid before the Parliament, which confirmed the judgment. Foss. This appears to be the Act of Parliament referred to in the text.